

9:00 A.M.

Calendar Lines # 3

Case Name California Civil Rights Department vs Arcadia Management Services Co.

Case No. 26CV492170

Application for an Order to Show Cause

I. BACKGROUND

On May 5, 2026, Petitioner/California Civil Rights Department (“CRD”) filed an ex parte application for an order to show cause against Respondent Arcadia Management Services, Co. (“Arcadia”) under Government Code section 12963.5. Respondent opposed the application on that same day. The Court denied without prejudice the first application for further proof. CRD then filed a second ex parte application for an order to show cause compliance with investigative discovery on the same respondent Arcadia on May 20, 2026. CRD attempted to file the motion by noticed motion, but was not given a date until December 10, 2026. CRD filed an order shortening time before June 11, 2026. Arcadia again opposed the application. The Court granted the application and set the matter for an order to show cause no less than 10 day from the date of the Order to Show Cause and no more than 45 days from filing the Petition to Compel per Government Code section 12963.5(b).

The Court has carefully reviewed: CRD’s notice of ex parte application (totaling 2 pages); CRD’s memorandum of points and authorities (totaling 5 pages); Declaration of Nassim Moallem in support of CRD’s petition (totaling 34 pages); Arcadia’s opposition to the ex parte (totaling 6 pages); Declaration of Puneet Singh in opposition (totaling 2 pages); CRD’s notice of ex parte application (totaling 3 pages); CRD’s memorandum of points and authorities (totaling 8 pages); Declaration of Nassim Moallem in support of CRD’s petition (totaling 35 pages); Arcadia’s opposition to the ex parte (totaling 6 pages); Declaration of Puneet Singh in opposition (totaling 8 pages); Arcadia’s request to continue hearing and extend time to appear, declaration of sing and proposed order (totaling 6 pages); Arcadia’s reply brief (totaling 4 pages); and Declaration of Nassim Moallem in support of petition to compel and response to Respondent’s request to continue hearing (totaling 11 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

A. INVESTIGATIONS UNDER THE FAIR EMPLOYMENT AND HOUSING ACT

California Government Code section 12955 is part of the Fair Employment and Housing Act (“FEHA”) and prohibits housing discrimination, harassment, and relation in the state. Section 12955 prohibits unlawful conduct regarding housing such as refusal to rent, lease, sell, mortgage, finance, or otherwise discriminate against individuals based on projected categories including: race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, disability, veteran or military status, or genetic information. (Gov. Code §12955 et seq.).

Government Code section 12930 sets forth the responsibly of CRD (formerly known as the Department of Fair Employment and Housing) for investigating and prosecuting violations under the California civil rights laws, including claims under FEHA.

Government Code section 12980 provides:

- (a) Any person claiming to be aggrieved by an alleged violation of Section 12955, 12955.1, 12955.1, or 12955.7 may file with the department a verified complaint in writing that shall state the name and address of the person alleged to have committed the violation complained of, and that shall set

forth the particulars of the alleged violation and contain any other information required by the department. The filing of a complaint and pursuit of conciliation or remedy under this part shall not prejudice the complainant's right to pursue effective judicial relief under other applicable laws, but if a civil action has been filed under section 52 of the Civil Code, the department shall terminate proceedings upon notification of the entry of final judgment unless the judgment is a dismissal entered at the complainant's request.

- (b) The Attorney General or the director may, in a like manner, make, sign, and file complaints citing practices that appear to violate the purpose of this part or any specific provisions of this part relating to housing discrimination. No complaint may be filed after the expiration of one year from the date upon which the alleged violation occurred or terminated.
- (c) The department may thereupon proceed upon the complaint in the same manner and with the same powers as provided in this part in the case of an unlawful practice, except that where the provisions of this article provide greater rights and remedies to an aggrieved person than the provisions of Article 1 (commencing with section 12960), the provisions of this article shall prevail.
- (d) Upon the filing of a complaint, the department shall serve notice upon the complainant of the time limits, rights of the parties, and choice of forums provided for under the law.
- (e) The department shall commence proceedings with respect to a complaint within 30 days of filing of the complaint.
- (f) An investigation of allegations contained in any complaint filed with the department shall be completed within 100 days after receipt of the complaint, unless it is impracticable to do so. If the investigation is not completed within 100 days, the complainant and respondent shall be notified, in writing, of the department's reasons for not doing so.
- (g) Upon the conclusion of each investigation, the department shall prepare a final investigative report containing all of the following: (1) The names of any witnesses and the dates of any contacts with those witnesses. (2) A summary of the dates of any correspondence or other contacts with the aggrieved persons or the respondent. (3) A summary of witness statements. (4) Answers to interrogatories. (5) A summary description of other pertinent records. A final investigative report may be amended if additional evidence is later discovered.
- (h) If a civil action is not brought by the department within 100 days after the filing of a complaint, or if the department earlier determines that no civil action will be brought, the department shall promptly notify the person claiming to be aggrieved. This notice shall, in any event, be issued no more than 30 days after the date of the determination or 30 days after the date of the expiration of the 100-day period, whichever date first occurs. The notice shall indicate that the person claiming to be aggrieved may bring a civil action under this part against the person named in the verified complaint within the time period specified in Section 12989.1. The notice shall also indicate, unless the department has determined that no civil action will be brought, that the person claiming to be aggrieved has the option of continuing to seek redress for the alleged discrimination through the procedures of the department if the person does not desire to file a civil action. The superior courts of the State of California shall have jurisdiction of these actions, and the aggrieved person may file in these courts. The action may be brought in any county in the state in which the violation is alleged to have been committed, or in the county in which the records relevant to the alleged violation are maintained and administered, but if the defendant is not

found within that county, the action may be brought within the county of the defendant's residence or principal office. A copy of any complaint filed pursuant to this part shall be served on the principal offices of the department. The remedy for failure to send a copy of a complaint is an order to do so. In a civil action brought under this section, the court, in its discretion, may award to the prevailing party reasonable attorney's fees.

CRD is vested with subpoena power and authority to propound written interrogatories and request for production as part of its duty to investigate and determine if there is reason to believe an unlawful practice has occurred prior to filing a civil action. (Gov. Code, §§ 12981 (a)(1)-(2), 12963.1, 12963.2, and 12963.4).

B. ORDER TO SHOW CAUSE AND COMPEL RESPONSES UNDER GOVERNMENT CODE SECTION 12963.5

If a person or entity fails to comply or fully respond to CRD's investigative discovery requests, CRD is authorized to petition a trial court to compel full responses. Pursuant to California Government Code section 12963.5:

- (a) The superior courts shall have jurisdiction to compel the attendance and testimony of witnesses, the production of books, records, documents, and physical materials, and the answering of interrogatories. If an individual or organization fails to comply with a subpoena, interrogatory, request for production, or examination under oath by refusing to respond fully or objecting thereto, or by obstructing any proceeding before the department, the department may file with a superior court a petition for an order compelling compliance, naming as respondent the individual or organization that has failed to comply. Such an action may be brought in any county in which the department's investigation or inquiry takes place, or in the county of the respondent's residence or principal office.
- (b) The petition shall describe the inquiry or investigation before the department, the basis for its jurisdiction therein, and state facts showing that the subpoena, interrogatory, request for production, or examination under oath was issued or carried out in accordance with the requirements of this part, that the information sought was identified with sufficient particularity to permit response and is reasonably relevant to the inquiry or investigation before the department, and that the respondent has failed to comply. If the petition sets forth good cause for relief, the court shall issue an order to show cause to the respondent; otherwise the court shall enter an order denying the petition. The order to show cause shall be served, along with the department's petition, on the respondent in the same manner as summons must be served in civil actions, and the order shall be returnable not less than 10 days from its issuance nor later than 45 days after the filing of the petition. The respondent shall have the right to serve and file a written answer or other response to the petition and order to show cause.
- (c) Unless otherwise stipulated by the parties, the court shall no later than 30 days after the filing of the petition file its order granting or denying the petition. However, the court may on its own motion for good cause extend such time an additional 30 days. If the order grants the petition in whole or part, the order shall set forth the manner in which the respondent shall comply and the period of time following the effective date of the order within which such compliance is required. A copy of the order shall be served by mail by the clerk upon the parties. If the order grants the petition in whole or in part, the order shall not become effective until 10 days after it is served. If the order denies the petition, it shall become effective on the date it is served.

- (d) The order of the superior court is immediately appealable in the court of appeal. A party aggrieved by such order, or any part thereof, may within 15 days after the service of the superior court's order, serve and file a notice of appeal. The appeal shall have precedence in the court to which the appeal is taken and shall be determined as soon as practicable after the notice of appeal is filed.

III. ANALYSIS

CRD brings an order to show cause and compelling compliance based on section 12963.5 and must show that: (i) a description of the inquiry or investigation before the Department; (ii) the juridical basis for the Department's investigation; (iii) facts showing the Department's investigative discovery was properly issued and served; (iv) information sought was identified with sufficient particularity and reasonably relevant to the inquiry or investigation; and (v) the respondent failed to fully comply.

Here, CRD asserts it is investigating inquiry and investigation of discrimination. On October 10, 2025, CRD's Director, Kevin Kish, issued a Director's Complaint for systemic group or class relief containing allegations that Arcadia and other entities engaged in a pattern of practice of systematic discrimination against a group or class of tenants on the basis of source of income. (Declaration of Nassim Moallem, p. 1). Specifically, Respondent engages in a pattern of discrimination against tenants with housing subsidies, including section 8 voucher holders at rental apartments that Arcadia manages in San Jose in violation of FEHA and Unruh under Government Code sections 12961 and 12980. (Exhibit A, Declaration of Moallem, p. 11). The Director's Complaint include allegations that respondent is evicting or threatening eviction by issuing 90-Day Notice of Termination of Tenancy stating that Arcadia is seeking to "opt out" of section 8 program; respondent is subjecting section 8 tenants to different terms and conditions; and offering unequal leasing terms and steering section 8 tenants to certain areas of rental properties. (*Id.*).

As part of its investigation, on October 10, 2025, CRD issued and served Arcadia's agent of service with Request for Production of Documents, set one and investigative interrogatories, set one via certified mail. (*Id.*, at p. 12). Per CRD, Respondent received the requests on or before October 20, 2025. (*Id.*). CRD cites that it seeks information deemed necessary to determine whether to charge a statutory violation or make a decision that no further action is necessary. (*Id.*, citing (*Dept. Fair Empl. & Hous. v. Super. Ct. (Keller)* (2002) 99 Cal.App.4th 896, 902.) CRD asserts this administrative investigation is construed broadly. (*Id.*, citing (*State Water Resources Control Bd. v. Baldwin & Sons, Inc.* (2020) 45 Cal.App.5th 40, 57-58 [describing the definition of relevance in such investigations as "expansive" and "broad"]].)

CRD seeks investigative discovery relevant to its investigation as to whether or not Arcadia has violated FEHA and Unruh. CRD compels four categories:

- (1) ***Witness and/ or potential group or class members. (Interrogatories Nos. 14-20, 25 and Request for Production of Documents Nos. 12, 15, 19-23).*** CRD seeks documents and information regarding current and prospective section 8 tenants at Arcadia's properties. CRD seeks names and contact information. CRD asserts it needs to be able to identify and interview individuals who are potential witnesses to the alleged conduct and/or group or class members.
- (2) ***Tenant Evictions. (Interrogatories Nos. 16-17 and Request for Production of Documents Nos. 3-5).*** CRD seeks documents and information regarding all evictions at the property that it states is relevant to section 8 tenants evictions or threats of evictions.
- (3) ***Rent setting and increases. (Interrogatories Nos. 24 & 26 and Request for Production of Documents Nos. 7-9 & 11).*** CRD seeks information and documents relating to Arcadia's rent setting and increases to

determine if section 8 tenants were subjected to different terms and conditions. CRD seeks information including rent rolls, rent increase notices, and rent listings for the last three years.

- (4) Relevant Communications. (*Interrogatories Nos. 17 and Request for Production of Documents Nos. 13, 14 & 18*). CRD seeks information reflecting communication related to decisions about section 9 tenants.

(*Id.*, at p. 13-14).

CRD avers that Arcadia as failed to comply with discovery. (*Id.*, at p. 14-15). Arcadia served responses to initial discovery on November 19, 2025. (*Id.*, at p. 15.). CRD notes deficiencies in responses as noted above. After meeting-and-conferring Arcadia provided supplemental production on January 23, 2026. (*Id.*). CRD met-and-conferred with Arcadia, which provided written responses, but declined to discuss further or comply. (*Id.*). CRD argues that Arcadia’s assertion of privacy and confidentiality interests lack merit given the type of investigation. (*Id.*). CRD emphasizes its compelling interest in prohibits discrimination as outweighing any privacy interests of former and current rental applications. (*Id.*). CRD also notes its investigations are confidential pursuant to Government Code section 11183. (*Id.*). CRD also asserts Arcadia fails to show that the discovery is overboard or unduly burdensome. (*Id.*). CRD asserts that the requested information should be maintained as part of Respondent’s course of business. (*Id.*, at p. 16).

CONCLUSION

Based on the foregoing, the Court will hear oral arguments. Parties to appear.

Calendar Lines # 4

Case Name Teng Wu vs General Motors, LLC

Case No. 22CV397674

Motion for Attorney’s Fees, Cost, and Multiplier

I. BACKGROUND

Before the court is Plaintiff Teng Wu’s motion for attorney’s fees, costs and enhancer based on a resolution of Song-Beverly Consumer Warrant Act claim arising out of Plaintiff’s 2019 Chevrolet Bolt, vehicle identification number 1G1FY6S04K4135781. (Plaintiff’s Motion, p. 7). Plaintiff accepted a 998 offer in the amount of \$55,000.00 cash plus pre-judgment interest in the amount of \$15,279.46 for a total settlement amount of \$70,279.46 (*Id.*). Based on this resolution, plaintiff asserts itself as the prevailing party and seeks a total of \$45,851.96¹ in attorney’s fees, costs, and multiplier. (Plaintiff’s Reply Brief, p. 5). The motion was filed on September 8, 2025, the motion was accompanied with a proof of service indicating electronic service on September 4, 2025.

On May 27, 2026, Defendant Ford Motor Company (“Ford”) filed opposition papers on the grounds that the plaintiff’s motion is untimely and the amount sought is unreasonable and excessive given the type of case and 23 months of inactivity. (Defendant’s Opposition, p. 5). Plaintiff filed a reply brief on June 2.

The Court has carefully reviewed the following: Plaintiff’s notice and memorandum of points and authorities (totaling 21 pages); Declaration of Payam Shahian in support of plaintiff’s motion and attached Exhibits 1-28

¹ The Court notes that in the original moving parties, Plaintiff Wu sought \$47,401.96, but in its subsequent reply brief, the plaintiff seeks a total amount of \$45,851.96. There is a \$1,550.00 reduction from the original \$4,000.00 amount for opposition briefs and appearing for this hearing.